

Mohd. Imran v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 April 2019 · Writ-C No. 10243 of 2019 · **Writ disposed; petitioner relegated to clause 6.5; 45-day stay.**

HEADNOTE

A consumer challenging a demand notice for outstanding electricity dues was relegated to a clause 6.5 representation under the U.P. Electricity Supply Code, 2005, to be filed within fifteen days and decided within one month, with 45-day protection from coercive measures that lapses if the representation is not filed in time. The direction is confined to outstanding dues and does not cover alleged theft of electricity.

FACTUAL SUMMARY

Mohd. Imran, a consumer supplied from Dakshinanchal Vidyut Vitran Khand-III, Aligarh, challenged a demand notice and recovery dated 18 March 2017 issued by the Executive Engineer. He also sought a mandamus requiring that officer to decide his objection of the same date. The controversy related to outstanding electricity dues, with alleged theft of electricity also in the background. The Division Bench heard counsel for the parties and perused the record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-under-6.5

HOLDING

A consumer aggrieved by a demand notice for outstanding electricity dues may take recourse under clause 6.5 of the U.P. Electricity Supply Code, 2005 by representation to the appropriate authority. The writ was disposed of with a direction to file that representation within fifteen days, to be decided within one month of receipt of the certified copy and representation, and with 45-day protection from coercive measures that automatically lapses if the representation is not filed in time. The direction is confined to outstanding dues and does not apply to alleged theft of electricity. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer challenging a demand notice for outstanding electricity dues was relegated to a clause 6.5 representation under the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE AND RECOVERY DATED 18 MARCH 2017

Writ disposed without examining the bill on merits; petitioner relegated to clause 6.5. ¶ 1

NOT DECIDED — ALLEGED THEFT OF ELECTRICITY

Court expressly confined the order to outstanding dues and not to alleged theft. ¶ 1